

HOUSE BILL 2612

By Hulsey

AN ACT to amend Tennessee Code Annotated, Title 55,
Chapter 50, relative to application procedures for
driver licenses.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 55-50-321, is amended by adding
the following new subsection:

(j)

(1) At the time of application or renewal of a driver license by an applicant who appears at a driver license station, staff shall inquire of the applicant whether the applicant would like to be issued a REAL ID compliant driver license or a non-REAL ID compliant license. The applicant must be provided a printed document that the applicant shall sign and on which the applicant shall check a box stating whether the applicant is applying for a REAL ID compliant driver license or a non-REAL ID compliant driver license and that the applicant was provided the printed document as required pursuant to subdivision (j)(2).

(2) The applicant must be provided a printed document that includes the following information:

(A) The documents that are required to be provided by the applicant to obtain a REAL ID compliant driver license, and the documents that are required to be provided by the applicant to obtain a non-REAL ID compliant driver license;

(B) The purposes for which a REAL ID compliant driver license may be utilized, and the purposes for which a non-REAL ID compliant driver license may be utilized;

(C) The alternative forms of identification in lieu of a REAL ID compliant driver license, including a U.S. passport, that will be accepted to fly domestically within the United States or to seek entry to a military base, nuclear facility, or certain federal buildings; and

(D) The electronic technology incorporated into a REAL ID compliant driver license, and the electronic technology incorporated into a non-REAL ID compliant driver license.

(3) If the applicant elects not to apply for a REAL ID compliant driver license, then staff shall facilitate and complete the processing of the application for a non-REAL ID compliant driver license.

(4) The department's website must contain a prominently displayed statement that indicates obtaining a REAL ID compliant driver license is optional.

(5) As used in this subsection (j):

(A) "Driver license" includes a photo identification license issued under § 55-50-336 and a learner's permit;

(B) "Non-REAL ID compliant driver license" means a driver license that is not compliant with the standards of the REAL ID Act of 2005 (49 U.S.C. §§ 30301, et seq.) and 6 CFR Part 37; and

(C) "REAL ID compliant driver license" means a driver license that complies with the standards of the REAL ID Act of 2005 (49 U.S.C. §§ 30301, et seq.) and 6 CFR Part 37.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.